

Defendant's motion for summary adjudication is **denied** as outlined above.

Evidentiary Issues

The Court need only rule on those objections to evidence that were material to the disposition of the MSJ/MSA. (See CCP § 437c(q).)

As of March 1, 2026, this case is assigned for all purposes to Department 10, the Honorable Julia Campins.

22. 9:00 AM CASE NUMBER: MSC21-01668

CASE NAME: ANGELICA CUIEL VS. PRIVIA HEALTH GROUP, INC.

***HEARING ON MOTION IN RE: FINAL APPROVAL OF CLASS AND PAGA SET BY THE COURTROOM
FILED BY:**

TENTATIVE RULING:

Plaintiffs Angelica Curiel, Teresa Avila, Kira Chambers, and Christina Romay move for final approval of their class action and PAGA settlement with defendants Privia Health Group, Inc., Bass Medical Group, and Bass Privia Management Company of California.

A. Background and Settlement Terms

The original complaint was filed by plaintiff Curiel on August 4, 2021, raising class action claims against Bass Medical Group on behalf of non-exempt employees, alleging that defendant violated the Labor Code in various ways, including failure to pay minimum and overtime wages, failure to provide meal breaks, failure to provide proper wage statements, failure to reimburse necessary business expenses, and failure to pay all wages due on separation. On May 25, 2022, Chambers filed a similar action in this court (No. C22-01058). On November 29, 2022, the actions were consolidated. On April 15, 2024, plaintiffs filed a first amended class action complaint under PAGA (based on notices provided by the plaintiffs).

The settlement was first proposed for preliminary approval before Judge Treat in August of 2024. He declined to approve it as submitted, finding that there was insufficient discussion of the value of the claims, that the class included both independent contractors and employees, and that all non-exempt hourly employees would be lumped together with Bass employees.

The settlement was revised and plaintiffs filed a renewed motion, which was granted.

The settlement would create a gross settlement fund of \$5.1million. The class representative payment to plaintiff would be up to \$12,500 for each of the four plaintiffs. Attorney's fees would be \$1.938 million (38% of the settlement). Litigation costs would not exceed \$75,000. The settlement administrator's costs would not exceed \$30,000. PAGA penalties would be \$650,000. Because the LWDA notices in question were filed before June 19, 2024, the employees would receive a 25% share of PAGA penalties, or \$162,500. (Labor Code §2699(m), (v)(1).) The net amount paid directly to the class members would be about \$2.357 million (now estimated at \$2,480,599.74. The fund is non-reversionary. Based on the estimated class size of 3,310, the average net payment for each class

member is now estimated at approximately \$905.

The proposed settlement would certify a class of all current and former non-exempt employees employed by Bass Medical Group during the class period. (Settlement, Par. I.2.) A separate group of “IC Class members” (estimated at 25 people), would receive payments averaging \$1,342. The “PAGA Group” members would receive an average of \$31.33 Payments, however, would include funds attributable to time that a class member performed paid work as an independent contractor for any of the three defendants.

The class members will not be required to file a claim. Class members may object or opt out of the settlement. (Aggrieved employees cannot opt out of the PAGA portion of the settlement.) Funds would be apportioned to class members based on the number of workweeks worked during the class period.

Various prescribed follow-up steps will be taken with respect to mail that is returned as undeliverable. Checks undelivered or uncashed 180 days after mailing will be voided, and would be tendered to the State Controller’s unclaimed property fund.

Since preliminary approval, notice has been provided to the class. 2,741 notice packages were mailed, and none were returned. As of the date of the settlement administrator’s declaration (January 6, 2026), no objections or requests for exclusion were received. Based on the December 1, 2025, mailing date, and the 45-day notice period to object or request exclusion, however, a supplemental declaration from the settlement administrator indicating the status as of January 15, 2026 , is necessary.

The settlement contains release language (see Par. 86) covering “all causes of action and claims pled in the Actions and all other claims. . . that could have been alleged based on the facts pled in the Actions[.]” Under recent appellate authority, the limitation to those claims with the “same factual predicate” as those alleged in the complaint is critical. (*Amaro v. Anaheim Arena Mgmt., LLC* (2021) 69 Cal.App.5th 521, 537 [“A court cannot release claims that are outside the scope of the allegations of the complaint.” “Put another way, a release of claims that goes beyond the scope of the allegations in the operative complaint’ is impermissible.” (*Id.*, quoting *Marshall v. Northrop Grumman Corp.* (C.D. Cal.2020) 469 F.Supp.3d 942, 949.)

Informal written discovery was undertaken. The matter settled after arms-length negotiations, which included a session with an experienced mediator.

Counsel attest that they have analyzed the value of the case, and that the result achieved in this litigation is fair, adequate, and reasonable. The renewed motion contains a case-specific analysis of the value of the case. (See St. John Dec.) Counsel’s declaration include an estimate of the potential value of the case, broken down by each type of claim.

The potential liability needs to be adjusted for various evidence and risk-based contingencies, including problems of proof. PAGA penalties are difficult to evaluate for a number of reasons: they derive from other violations, they include “stacking” of violations, the law may only allow application

of the “initial violation” penalty amount, and the total amount may be reduced in the discretion of the court. (See Labor Code, § 2699(e)(2) [PAGA penalties may be reduced where “based on the facts and circumstances of the particular case, to do otherwise would result in an award that is unjust arbitrary and oppressive, or confiscatory.”])

Counsel attest that a copy of the proposed settlement was served on the LWDA.

B. Legal Standards

The primary determination to be made is whether the proposed settlement is “fair, reasonable, and adequate,” under *Dunk v. Ford Motor Co.* (1996) 48 Cal.App.4th 1794, 1801, including “the strength of plaintiffs’ case, the risk, expense, complexity and likely duration of further litigation, the risk of maintaining class action status through trial, the amount offered in settlement, the extent of discovery completed and the state of the proceedings, the experience and views of counsel, the presence of a governmental participant, and the reaction ... to the proposed settlement.” (See also *Amaro v. Anaheim Arena Mgmt., LLC*, *supra*, 69 Cal.App.5th 521.)

Because this matter also proposes to settle PAGA claims, the Court also must consider the criteria that apply under that statute. Recently, the Court of Appeal’s decision in *Moniz v. Adecco USA, Inc.* (2021) 72 Cal.App.5th 56, provided guidance on this issue. In *Moniz*, the court found that the “fair, reasonable, and adequate” standard applicable to class actions applies to PAGA settlements. (*Id.*, at 64.) The Court also held that the trial court must assess “the fairness of the settlement’s allocation of civil penalties between the affected aggrieved employees[.]” (*Id.*, at 64-65.)

California law provides some general guidance concerning judicial approval of any settlement. First, public policy generally favors settlement. (*Neary v. Regents of University of California* (1992) 3 Cal.4th 273.) Nonetheless, the court should not approve an agreement contrary to law or public policy. (*Bechtel Corp. v. Superior Court* (1973) 33 Cal.App.3d 405, 412; *Timney v. Lin* (2003) 106 Cal.App.4th 1121, 1127.) Moreover, “[t]he court cannot surrender its duty to see that the judgment to be entered is a just one, nor is the court to act as a mere puppet in the matter.” (*California State Auto. Assn. Inter-Ins. Bureau v. Superior Court* (1990) 50 Cal.3d 658, 664.) As a result, courts have specifically noted that *Neary* does not always apply, because “[w]here the rights of the public are implicated, the additional safeguard of judicial review, though more cumbersome to the settlement process, serves a salutary purpose.” (*Consumer Advocacy Group, Inc. v. Kintetsu Enterprises of America* (2006) 141 Cal.App.4th 48, 63.)

C. Attorney fees

Plaintiff seeks 38% of the total settlement amount (\$1,938,000) as fees, relying on the “common fund” theory. Even a proper common fund-based fee award, however, should be reviewed through a lodestar cross-check. In *Lafitte v. Robert Half International* (2016) 1 Cal.5th 480, 503, the Supreme Court endorsed the use of a lodestar cross-check as a way to determine whether the percentage allocated is reasonable. It stated: “If the multiplier calculated by means of a lodestar cross-check is extraordinarily high or low, the trial court should consider whether the percentage used should be adjusted so as to bring the imputed multiplier within a justifiable range, but the court is not

necessarily required to make such an adjustment.” (*Id.*, at 505.) Counsel have computed a lodestar fee (combined for the three law firms that represented plaintiffs), the lodestar is calculated at \$478,420, based on 567.60 hours, which results in a blended rate of \$842. The imputed multiplier is 4.06.

Even based on the percentage of the common fund, plaintiffs’ request for 38% is higher than typical in these cases. A fee of 30% of the recovery would still constitute \$1,530,000 (and would leave an imputed multiplier of 3.20). While plaintiffs’ moving papers discuss the difficulties of this type of litigation, there appears to be nothing extraordinary about the circumstances of this case. The Court finds that the reasonable fee here is \$1,530,000 and grants the motion in that amount.

Litigation costs of \$26,179.80 are reasonable and are approved.

Settlement administration costs of \$21,975 are reasonable and are approved.

The requested representative payment of \$12,500 for each plaintiff (\$50,000 total) is reviewed now, under the Criteria for evaluation of representative payment requests discussed in *Clark v. American Residential Services LLC* (2009) 175 Cal.App.4th 785, 804-807. Each plaintiff has filed a declaration attesting to their involvement in the matter and the time they spent on it. Based primarily on the size of the total recovery, the Court awards each plaintiff \$12,500.

D. Conclusion

The Court requires plaintiffs to submit a supplemental declaration from the settlement administrator indicating whether any objections or requests for exclusion were received before the January 15, 2026 deadline. **The declaration is to be provided no later than February 5, 2026, and the hearing on this matter will be continued to February 19, 2026.**

Until that declaration is provided and reviewed (so that any objectors may be heard), the Court cannot find whether the proposed settlement is sufficiently fair, reasonable, and adequate to approve.

If approval is granted, counsel will be directed to prepare an order reflecting this tentative ruling, and the other findings in the previously submitted proposed order. The ultimate judgment must provide for a compliance hearing after the settlement has been completely implemented. Plaintiffs’ counsel are to submit a compliance statement one week before the compliance hearing date. 5% of the attorney’s fees are to be withheld by the claims administrator pending satisfactory compliance as found by the Court.

23. 9:00 AM CASE NUMBER: MSC22-00088

CASE NAME: KALAMAS VS. JOHN MUIR HEALTH

***HEARING ON MOTION IN RE: STRIKE OF TAX COSTS (CONTINUED FROM 12.18.2025)**

FILED BY:

TENTATIVE RULING:

Continued by stipulation and order (entered January 20, 2026), to March 5, 2026, 9:00 a.m., in Department 10, the Honorable Julia Campins. As of March 1, 2026, this matter is assigned to Judge